AMOS PHIRI
and
WIDON LOMWE
and
ESNITA MANGWIRO
and
WILLARD MUKUTIRI
versus
NAMIB MINERALS
and
MAZOWE MINING COMPANY (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE; 9 January 2025

Urgent Chamber application

A Jakarasi, for the Applicants.
G Gapu, for the Respondents.

WAMAMBO J: This is an urgent chamber application for an interdict for the first and second respondent cease shall immediately cease and desist from any processes associated with the acquisition of the second respondent until second respondent has discharged its legal obligation of paying moneys owed to the applicants.

The first to fourth applicants are former employees of Mazowe Mining Company (Pvt) Ltd (the second respondent), which was once part of the international conglomerate Metallon Corporation Limited. It is alleged that between 2014 and 2017, the second respondent faced severe financial distress, leading to significant difficulties in meeting payroll obligations. The applicants claim that the company frequently entered into new employment contracts without settling existing salary arrears. The applicants state that they, along with other former employees, have been engaged in protracted legal battles with the second respondent. While previously represented by the Associated Mine Workers Union of Zimbabwe, the applicants now represent

themselves, alleging that they can no longer afford union membership due to years of unpaid wages. The submission notes a history of corporate rescue attempts; a 2020 High Court order for corporate rescue was reportedly overturned by the Supreme Court in 2021 due to procedural non-compliance. Currently, the applicants contend that the second respondent remains indebted to its former workforce for an amount exceeding 14 million USD in unpaid salaries, pensions, and benefits—an indebtedness they claim was acknowledged in prior legal proceedings.

The applicants allege that the second respondent has engaged in various tactics to evade its financial and legal responsibilities, including contractual disputes where former workers reportedly operate mining portions under a 70/30 share agreement, but the second respondent attempted to unlawfully dispossess them of these areas, resulting in a spoliation order in 2024. Furthermore, it is alleged that the second respondent attempted to use police assistance to shut down mining shafts under a "misconceived government directive" to circumvent court orders, which led to a subsequent interdict. The applicants also allege that the second respondent is acting in collusion with the first respondent to facilitate a takeover of the mine in a "desperate attempt" to evade paying salary arrears and to facilitate the eviction of occupants before their contracts are lawfully terminated or their debts are settled. Regarding recent developments, the applicants claim that on September 11, 2025, they discovered that the first respondent had already deployed staff and security guards to the mine. They point to media reports from August and September 2025 suggesting the first respondent has concluded the acquisition of the mine. The applicants argue these actions are illegal, asserting that the second respondent is still subject to pending corporate rescue proceedings and has not yet satisfied its legal obligations to its former employees.

The respondents submitted several points in limine, beginning with the allegation that the application is fatally defective and procedurally invalid on two primary grounds. They first claim it fails to state the specific grounds for the application within the required format for urgent chamber matters, thereby violating mandatory court rules, and further argue that the application is incompetent because the interim relief sought is identical to the final relief, which they assert is a fatal legal error. Regarding the lack of urgency, it is the respondents' position that the matter does not qualify as urgent because, based on the applicants' own statements, the first respondent is already an indirect shareholder of the second respondent; consequently, they argue that the

applicants are attempting to interdict a process that has already been concluded, meaning the stable door is already open.

Furthermore, the respondents contend that the court lacks jurisdiction as they allege the first respondent is a foreign entity registered in the Cayman Islands and listed on the NASDAQ in the United States, with no physical offices or direct assets in Zimbabwe. They submit that the legal principle of actor sequitur forum rei applies, meaning the applicants must sue the first respondent in its own country of residence. The respondents also submit that the applicants lack the necessary locus standi to bring this suit, alleging that the first to third applicants failed to quantify the specific debts owed to them and arguing that being a former employee does not automatically grant a person the right to challenge a company's corporate transactions. They maintain that even if debts were owed, which they deny, such debts do not grant the applicants a legal right to interfere with the shareholding processes of the second respondent, as the mine remains the property of the second respondent. Finally, the respondents request a prayer for punitive costs, asking the court to dismiss the application with costs on a punitive scale and further alleging that the application is so legally flawed that costs should be awarded de bonis propriis against the applicants' legal practitioners, as any competent lawyer should have realized the court lacked jurisdiction and that the relief sought was baseless.

The respondents claim the matter is moot because they argue the act the applicant is trying to interdict has already taken place. They submitted that the first respondent already "indirectly owns" the second respondent through shareholding.

Even if the first Respondent is an "indirect owner," a company under corporate rescue is protected by a legal moratorium. If the first Respondent is allowed to "restart gold production" (as cited in the articles) while the second Respondent is under corporate rescue, the assets of the company might be depleted, rendering the corporate rescue process useless for other creditors. Once gold is mined and sold, it cannot be recovered. The test for urgency is trite; it was stated in *Kuvarega* v *Registrar General 1998 (1) ZLR 188 (H),* as follows:

> "What constitutes urgency is not only the imminent arrival of the day of reckoning. A matter is urgent if, at the time the need to act arises, the matter cannot wait. Urgency which stems from a deliberate or careless abstention from action until the deadline draws near is not the type of urgency contemplated by the rules."

The Applicants became aware of the threat on September 11, 2025, and acted. The present application was filed on September 15, 2025. A few days after that discovery, the Applicant has not "slumbered on their rights." As a consequence, the court finds that the applicants acted swiftly and urgency can be imputed thereof.

The court will delve into the rest of the points in limine. The respondents submitted that the interim relief and the final order are the same, which makes the application itself fatally defective. To bolster this argument, they cited *Kuvarega* v *Registrar-General & Anor 1998 (1) ZLR 188(H) at 193A-D* where it was held that:

> "The practice of seeking interim relief, which is exactly the same as the substantive relief sued for and which has the same effect, defeats the whole object of interim protection. In effect, a litigant who seeks relief in this manner obtains final relief without proving his case. That is so because interim relief is normally granted on the mere showing of a prima facie case. If the interim relief sought is identical to the main relief and has the same substantive effect, it means that the applicant is granted the main relief on proof merely of a prima facie case. This, to my mind, is undesirable especially where, as here, the applicant will have no interest in the outcome of the case on the return day."

In *Samukeliso Mabhena* v *Edmund Mbangani (HB 57/18)*, the court reaffirmed the *Kuvarega* v *Registrar-General* (supra) principle, noting that:

> "It is a well-established practice of this court that in an urgent application the court grants interim relief and not substantive or final relief."

It is unequivocal that the import of the remarks by the court in *Kuvarega* supra is that it is improper in an urgent chamber application, for an interim relief, and the final relief to be similar.

Because, as the court said in *Kuvarega* v *Registrar-General (supra)*, if the interim relief gives you exactly what you want, there is no reason for you to come back to court to confirm it. The "Return Date" becomes a legal fiction because the applicant already has the prize.

The court is convinced that the application, for the foregoing analysis, is fatally defective and, as such, makes the following order:

1. The application be and is hereby struck off the roll.

2. The applicants shall pay the respondents costs.

WAMAMBO J…….

Madzima and Company Law Chambers, the applicants' legal practitioners
Scanlen & Holderness, the respondents' legal practitioners